

KOSTIANTYN MARS
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Austin, TX 78727
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Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

)
) **CONSOLIDATED EVIDENCE**
) **BINDER - EXHIBIT A**
) **VOLUME 5 of 10**

) **IN SUPPORT OF**

) **NOTICE OF REMOVAL,**
) **CIVIL RICO COMPLAINT,**
) **EMERGENCY MOTION FOR TRO,**
) **MOTION TO DISMISS CRIMINAL**
) **CASE B2402220 WITH PREJUDICE**

) **DATE:**

) **TIME:**

) **DEPT:**

**CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 5 of 10
(SET 4 PART 1 - CUSTODY RESTORATION & DENIAL OF PARENTAL RIGHTS)**

In Support of:

- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 4, 2026


KOSTIANTYN MARS
Pro Se

1 **TABLE OF CONTENTS (EXHIBITS IN THIS VOLUME)**

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EXHIBIT A-39

PETITIONER’S AFFIDAVIT ABOUT

AGGRAVATED KIDNAPPING OF HIS SON MAX MARS,

CHILD TRAFFICKING OUTSIDE UNITED STATES TO WAR ZONE IN UKRAINE,

AND REPETITIVE EXTORTION OF PASSPORT, DOCUMENTS AND MONEY

Full document:

<https://marsjustice.io/federal-removal/affidavit-mars.pdf>

Scan QR Code for instant download of the document:



AFFIDAVIT OF KOSTIANTYN MARS

About Aggravated Kidnapping of My Son Max Mars and Child Trafficking Outside United States to War Zone in Ukraine by Organized Group of Criminals from Ukrainian Criminal Cartel "Kodlo Gondona" Led by Serhii "Gondon" Nahorny, Father of My Ex Wife Hanna Mars, His Criminal Associate Ivan "Pedofile" Omelchenko, and Their Criminal Associates From Santa Clara Mafia Cartel Presiding Judge Beth McGowen, and Three Disqualified Judges Acting Outside Jurisdiction - Stephen Lowney, Andrea Flint, and James Towery.

Immediately after the aggravated kidnapping of my son Max Mars, I tried to reach the kidnappers - Serhii "Gordon" Nahorny, his daughter Hanna "Gnyda" Nahorna, his criminal associate Ivan "Pedofile" Omelchenko, and their criminal associates.

Gordon Nahorny and his daughter Gnyda refused to pick up - blocking contact with my son after kidnapping, and refusing to communicate.

Wife of Gondon Nahronyy, Irina "Suka" Nahorna picked up - and in response to me asking to release my son Max Mars from unlawful detention and refrain from international abduction of my son to the war zone in Ukraine, she answered that "You know who you are dealing with. My husband warned you that we will kill your mom and take your son to Ukraine - and you will not be able to do anything with that. You had to surrender the passport and all documents of your son to my husband and sign all the papers that he was demanding you to sign. Don't try to save your son - you will get more damage. You know who you are dealing with."

After that members of the family of Gondon Nahorny, his criminal associate Ivan "Pedophile" Omelchenko, and close friends of their family consistently refused to communicate.

Friend of Gondon's family Alexander Zakaznov to my request for help with establishing contact with my kidnapped son Max said: "You are wasting your time. They will not release your son".

Mother of Max's friend, Alena Chepakovich, provided an affidavit for court, clarifying that my ex-wife Hanna was frequently sharing plans to return to Ukraine and keep Max there - and

EXHIBIT A-40

**PETITIONER’S MULTIPLE CUSTODY REVIEW REQUESTS AND
REPEATED DENIALS OF CUSTODY REVIEW BY
DISQUALIFIED JUDGES LOWNEY, FLINT, AND TOWERY**

Description: Record of Petitioner’s repeated requests for custody review hearings filed with the Santa Clara County Superior Court together with the court’s consistent denials of those requests by disqualified judges Stephen Lowney, Andrea Flint, and James Towery.

Key Procedural Violations:

- Systematic denial of meaningful access to court and due process on critical custody and parental-rights matters.
- Refusal to hear custody review requests while enforcing orders issued by disqualified judges.

Date Range: September 2022 - December 2025

INTERNAL CHRONOLOGICAL INDEX

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<u>5</u>	2023-03-31	Notice of Substitution of Attorney - Termination of Steven Dinneen from further representation of Petitioner	Andrea Flint	12
<u>6</u>	2023-05-01	Custody Review Request Declaration	Andrea Flint	13
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Child Max Mars Under Threats of
Incarceration and Further
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<u>20</u>	2024-06-17	Order Denying Custody Review And DVRO Trial, Bifurcation of Divorce Status, Change of Venue, And Nullification of Void Orders Issued By Disqualified Judges Lowney, Flint, Towery, And Void Bench Warrant Issued By Disqualified Judge Stephen Lowney Against Petitioner Post-Disqualification	Stephen Lowney	36

EXHIBIT A-40 - ITEM 1
RESPONSE TO DVRO,
REQUEST FOR RELEASE OF MINOR CHILD MAX MARS
FROM UNLAWFUL DETENTION,
AND FOR CHILD ABDUCTION PREVENTION ORDERS
(2022-09-19)

Full document:

<https://marsjustice.io/federal-removal/dvro-response-request-to-release-max-mars-2022-09-19.pdf>

Scan QR Code for instant download of the document:



DV-120 Response to Request for Domestic Violence Restraining Order

Use this form if someone has asked for a domestic violence restraining order against you, and you want to respond in writing. You will need a copy of form DV-100, *Request for Domestic Violence Restraining Order*, that was filled out by the person who asked for a restraining order against you. There is no cost to file this form with the court.
Do not use this form if you want to ask for your own restraining order. Read form DV-500-INFO, *Can a Domestic Violence Restraining Order Help Me?* to find out more about this type of restraining order.

1 Name of Person Asking for Protection:
(See form DV-100, item ①):
HANNA MARS

2 Your Name: KOSTIANTYN MARS

① Address where you can receive court papers
(This address will be used by the court and by the person in ① to send you official court dates, orders, and papers. For privacy, you may use another address like a post office box or another person's address, if you have their permission and can get your mail regularly. If you have a lawyer, give their information.)
Address: _____ State: _____ Zip: _____
City: _____

① Your contact information (optional)
(The court could use this information to contact you. If you don't want the person in ① to have this information, leave it blank or provide a safe phone number or email address. If you have a lawyer, give their information.)
Email Address: CONSTANTINEMARS1@GMAIL.COM Telephone: 424.542.9763 Fax: _____

Your lawyer's information (if you have one)
Name: _____ State Bar No.: _____
Firm Name: _____

3 Your Hearing Date (Court Date)

Your hearing date is listed on form DV-109, *Notice of Court Hearing*. If you do not agree to having a restraining order against you, go to your hearing date. If you do not go to your hearing date, the judge could grant a restraining order that could last up to five years.

This is not a Court Order.

Justice Center of California, www.justiceca.gov
Revised January 1, 2022, Mandatory Form
Family Code, § 6300 et seq.

Response to Request for Domestic Violence Restraining Order
(Domestic Violence Prevention)

DV-120, Page 1 of 7
02-19-22: 02 HCS/SC/JPW

FILED
SEP 19 2022
Clerk of the Court
Superior Court of California, County of Santa Clara
BY [Signature] DEPUTY
Fill in court name and street location:
Superior Court of California, County of
201 N. First Street
191 N. First Street
San Jose, CA 95113
Family Justice Center
Fill in case number:
Case Number:
22DV000779

EXHIBIT A-40 - ITEM 2
ORDER DENYING DVRO TRIAL
(2022-10-31)

Full document:

<https://marsjustice.io/federal-removal/flint-denial-of-dvro-trial-and-extortion-of-money-2022-10-31.pdf>

Scan QR Code for instant download of the document:



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars	Hearing Start Time: 9:00 AM
22FL003144	Hearing Type: Request for Order: Domestic Violence
Date of Hearing: 10/31/2022	Comments:

Heard By: Flint, Andrea E
Courtroom Reporter: - No Court Reporter

Location: Department 79
Courtroom Clerk: Chris Collins
Court Interpreter:
Court Investigator:

Parties Present:

Dinneen, Steven Allen
Mars, Hanna
Mars, Kostiantyn
Roberts, Nancy Lee

Attorney
Respondent
Petitioner
Limited Scope
Attorney

Future Hearings:

January 24, 2023 8:30 AM Conference: Settlement
Flint, Andrea E
Department 79
January 30, 2023 9:00 AM Court Trial: Long Cause
Flint, Andrea E
Department 79

Exhibits:

- Respondent assisted by certified Russian interpreter.

Matters set for one-day hearing on DVRO. Based on agreement of the parties, matter limited to one day.

Parties should prepare to proceed by offer of proof.

Trial set on 1-30-23 at 9:00 a.m. Dept 79

MSC set on 1-24-23 at 8:30 a.m. Dept 79

The Court orders the DV matter and this FL matter to be consolidated with the FL case as the lead.

The Court orders that parties participate in a private screening with Father to pay.

The Court orders that parties participate and cooperate in a private screening.

Father ordered to pay full cost of the screening.

Printed: 10/31/2022

10/31/2022 Request for Order: Domestic Violence - 22FL003144

Page 1 of 1

EXHIBIT A-40 - ITEM 4
COERCED STIPULATION RE CHILD AND SPOUSAL SUPPORT
BY ORGANIZED CRIMINAL MEMBERS OF SANTA CLARA MAFIA CARTEL
ANDREA FLINT, STEVEN DINNEEN, NANCY ROBERTS
(2023-02-08)

Full document:

<https://marsjustice.io/federal-removal/flint-dinneen-roberts-coerced-stipulation-unwarranted-child-and-spousal-support-2023-02-08.pdf>

Scan QR Code for instant download of the document:



Nancy L. Roberts, Esq.
155 E. Campbell Ave., #255
Campbell, CA 95008
(408) 871-0775
Attorney for Respondent
Limited Scope
HANNA MARS

Filed
February 8, 2023
Clerk of the Court
Superior Court of CA
County of Santa Clara
22FL003144
By: limasa

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

KOSTIANTYN MARS,
Petitioner,
and
HANNA MARS,
Respondent.

Case No.: 22FL003144
STIPULATION RE CHILD SUPPORT
AND TEMPORARY SPOUSAL
SUPPORT
APJ: Andrea Flint
Dept. No.: 79

The parties, KOSTIANTYN MARS, by and through his attorney of record, Ryan Romero/Steven Dinneen and HANNA MARS, by and through her attorney of record, Nancy L. Roberts, hereby agree and stipulate as follows:

CHILD SUPPORT

1. **Child Support Payments.** Commencing February 1, 2023, Petitioner agrees to pay Respondent for the support, care, maintenance, and education of the minor child of the Parties, Maksym Mars (11/23/2015), as follows:
Amount of support per month: One Thousand Six Hundred Fifty Dollars (\$1,650)
First payment to be made on February 1, 2021.
Payments to be made: Semi-monthly
Subsequent payments of \$ 825.00 each shall be paid on the first day and the fifteenth day of each month. Petitioner shall pay to Respondent, as additional child support, an amount calculated by

1

STIPULATION & ORDER RE TEMPORARY CHILD AND SPOUSAL SUPPORT
Marriage of Mars Case No.: 22FL003144

EXHIBIT A-40 - ITEM 5
NOTICE OF SUBSTITUTION OF ATTORNEY -
TERMINATION OF STEVEN DINNEEN
FROM FURTHER REPRESENTATION OF PETITIONER
(2023-03-31)

Full document:

<https://marsjustice.io/federal-removal/substitution-of-attorney-termination-of-dinneen-2023-03-31.pdf>

Scan QR Code for instant download of the document:



DocuSign Envelope ID: 0F8CA78D-06DA-49CE-8B4B-0E351F570187

MC-050

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Steven A. Dinneen Esq. 254494 Law Offices of Steven A. Dinneen P.C. 247 N. Third Street San Jose, CA 95112 TELEPHONE NO.: (408) 998-9900 FAX NO. (408) 659-8191 E-MAIL ADDRESS (Optional): steven@dinneenlaw.com ATTORNEY FOR (Name): Kostiantyn Mars	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: 201 N. First Street MAILING ADDRESS: 191 N. First Street CITY AND ZIP CODE: San Jose, 95113 BRANCH NAME: Family Justice Center	
CASE NAME: Marriage of Mars	CASE NUMBER: 22FL003144
SUBSTITUTION OF ATTORNEY - CIVIL (Without Court Order)	

THE COURT AND ALL PARTIES ARE NOTIFIED THAT (name): Kostiantyn Mars makes the following substitution:
1. Former legal representative ☐ Party represented self ☒ Attorney (name): Steven A. Dinneen, Esq.
2. New legal representative ☒ Party is representing self ☐ Attorney
a. Name: Kostiantyn Mars
b. State Bar No. (if applicable):
c. Address (number, street, city, ZIP, and law firm name, if applicable):
P.O. Box 8081
San Jose, CA 95155
d. Telephone No. (include area code): 424-542-9709
3. The party making this substitution is a ☐ plaintiff ☐ defendant ☐ petitioner ☒ respondent ☐ other (specify):

***NOTICE TO PARTIES APPLYING TO REPRESENT THEMSELVES**

- Guardian
- Personal Representative
- Guardian ad litem
- Conservator
- Probate fiduciary
- Unincorporated association
- Trustee
- Corporation

If you are applying as one of the parties on this list, you may NOT act as your own attorney in most cases. Use this form to substitute one attorney for another attorney. SEEK LEGAL ADVICE BEFORE APPLYING TO REPRESENT YOURSELF.

NOTICE TO PARTIES WITHOUT ATTORNEYS
A party representing himself or herself may wish to seek legal assistance. Failure to take timely and appropriate action in this case may result in serious legal consequences.

4. I consent to this substitution.
Date: 3/31/2023

Kostiantyn Mars (TYPE OR PRINT NAME) _____

Decided by: Constantine Mars (SIGNATURE OF PARTY)

5. ☐ I consent to this substitution.
Date: _____

(TYPE OR PRINT NAME)

(SIGNATURE OF FORMER ATTORNEY)

6. ☒ I consent to this substitution.
Date: 3.28.23

Steven A. Dinneen (TYPE OR PRINT NAME) _____

(See reverse for proof of service by mail)

(SIGNATURE OF NEW ATTORNEY)

Form Adopted For Mandatory Use
Judicial Council of California
MC-050 (Rev. January 1, 2006)

Code of Civil Procedure, §§ 99411, 995
Civ. Rules of Court, rule 3.1362
www.courtinfo.ca.gov

SUBSTITUTION OF ATTORNEY - CIVIL
(Without Court Order)

Mars, Kostiantyn

EXHIBIT A-40 - ITEM 6
CUSTODY REVIEW REQUEST DECLARATION
(2023-03-31)

Full document:

<https://marsjustice.io/federal-removal/custody-review-request-declaration-2023-05-01.pdf>

Scan QR Code for instant download of the complete document:



ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): KOSTIANTYN MARS PO BOX 8081, SAN JOSE CA 95155		MC-030 FOR COURT USE ONLY	
TELEPHONE NO.: 424-542-9709 FAX NO. (Optional): E-MAIL ADDRESS (Optional): CONSTANTINE.MARS@GMAIL.COM ATTORNEY FOR (Name):		FILED MAY 01 2023 Clerk of the Court Superior Court of California, County of Santa Clara BY DEPUTY	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE, CA 95112 BRANCH NAME: FAMILY JUSTICE COURT			
PLAINTIFF/PETITIONER: KOSTIANTYN MARS DEFENDANT/RESPONDENT: HANNA MARS			
DECLARATION		CASE NUMBER: 22FL003144	

Declaration of Kostiantyn Mars for upcoming Custody Review Hearing on May 10, 9:00am, in amendment to FL-305 Temporary Emergency (Ex Parte) Orders for Child Custody and Visitation and FL-341 Child Abduction Prevention Attachment.

Please see attached Declaration (11 pages, and Exhibits A - O)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 05/01/2023

KOSTIANTYN MARS
(TYPE OR PRINT NAME)

(SIGNATURE OF DECLARANT)

☐ Attorney for ☐ Plaintiff ☐ Petitioner ☐ Defendant
☐ Respondent ☐ Other (Specify):

Form Approved for Optional Use
Judicial Council of California
MC-030 (Rev. January 1, 2009)

DECLARATION

Page 1 of 1

EXHIBIT A-40 - ITEM 7
ORDER DENYING CUSTODY REVIEW
(2023-06-29)

Full document:

<https://marsjustice.io/federal-removal/flint-denial-of-custody-review-and-extortion-of-mars-mars-passport-2023-06-29.pdf>

Scan QR Code for instant download of the complete document:



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 22FL003144 Date of Hearing: 06/29/2023	Hearing Start Time: 10:30 AM Hearing Type: Hearing: Other Comments: Line 1-2
--	--

Heard By: Flint, Andrea E Courtroom Reporter: No Court Reporter	Location: Department 79 Courtroom Clerk: True Parker Court Interpreter: Court Investigator:
--	--

Parties Present:

Mars, Hanna Mars, Kostiantyn Roberts, Nancy Lee	Respondent Petitioner Attorney Limited Scope Attorney
---	---

Future Hearings:

Exhibits:

Petitioner and respondent are sworn.
All above listed parties appear via MS Teams.
Hearing held re: dispute over documents (custody recommendation of Dr. Mary Rolison) submitted to the Court by petitioner.
The Court hears from the parties.
Dr. Mary Rolison is present and sworn and is directly examined as to the recommendations in her report.
The Court finds that petitioner submitted falsified documents (fraudulent copy of Dr. Mary Rolison's recommendations) to the Court.

Based on the falsified documents submitted by the petitioner, the Court denies petitioner's request to modify custody/visitation.

The Court makes the following orders:

- Mother shall have sole legal and sole physical custody of the minor child.
- Father shall have professionally supervised visits with the minor child.
- Petitioner is ordered to provide all legal documents pertaining to the minor child requested by attorney Nancy Roberts directly to attorney Nancy Roberts. Attorney Nancy Roberts will be tasked with keeping these documents. Ms. Roberts is permitted to show to mother documents at her office, if requested by mother.
- All previous orders not in conflict with these orders remain in full force and effect.

No further hearing set.

Attorney Nancy Roberts to prepare and submit the order after hearing.

EXHIBIT A-40 - ITEM 8
CUSTODY REVIEW REQUEST
(2023-07-17)

Full document:

<https://marsjustice.io/federal-removal/custody-review-request-2023-07-17.pdf>

Scan QR Code for instant download of the complete document:



PARTY WITHOUT ATTORNEY OR ATTORNEY		STATE BAR NUMBER	FL-300
NAME: KOSTIANTYN MARS FIRM NAME: STREET ADDRESS: PO BOX 8081 CITY: SAN JOSE TELEPHONE NO.: (408) 518-0088 E-MAIL ADDRESS: CONSTANTINE.MARS@GMAIL.COM ATTORNEY FOR (name):		STATE: CA FAX NO.: ZIP CODE: 95155	FILED (ENDORSED) JUL 17 2023 Clerk of the Court Superior Court of CA County of Santa Clara BY <u>St. Rowland</u> DEPUTY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE CA 95112 BRANCH NAME: FAMILY JUSTICE COURT			
PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS OTHER PARENT/PARTY:			
REQUEST FOR ORDER ☒ CHANGE ☐ TEMPORARY EMERGENCY ORDERS ☒ Child Custody ☒ Visitation (Parenting Time) ☐ Spousal or Partner Support ☐ Child Support ☐ Domestic Violence Order ☐ Attorney's Fees and Costs ☐ Property Control ☐ Other (specify):		CASE NUMBER: 22FL003144	

NOTICE OF HEARING

1. TO (name(s)): HANNA MARS
☐ Petitioner ☒ Respondent ☐ Other Parent/Party ☐ Other (specify):

2. A COURT HEARING WILL BE HELD AS FOLLOWS:

a. Date: <u>9/19/2023</u>	Time: <u>1:30 PM</u>	☒ Dept.: <u>FF</u>	☐ Room.:
b. Address of court ☐ same as noted above ☐ other (specify):			

3. **WARNING to the person served with the Request for Order:** The court may make the requested orders without you if you do not file a Responsive Declaration to Request for Order (form FL-320), serve a copy on the other parties at least nine court days before the hearing (unless the court has ordered a shorter period of time), and appear at the hearing. (See form FL-320-INFO for more information.)
(Forms FL-300-INFO and DV-400-INFO provide information about completing this form.)

COURT ORDER
(FOR COURT USE ONLY)

It is ordered that:

4. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before (date):

5. ☐ A Responsive Declaration to Request for Order (form FL-320) must be served on or before (date):

6. ☐ The parties must attend an appointment for child custody mediation or child custody recommending counseling as follows (specify date, time, and location):

7. ☐ The orders in Temporary Emergency (Ex Parte) Orders (form FL-305) apply to this proceeding and must be personally served with all documents filed with this Request for Order.

8. ☒ Other (specify): Each party is ordered to complete Orientation & schedule Mediation before the hearing. Go online to www.sccourt.org (search "Orientation").
Questions? Call FCS (408) 534-5760.

Date: JUL 17 2023

Form Adopted for Mandatory Use
Judicial Council of California
FL-300 (Rev. July 1, 2016)

REQUEST FOR ORDER

BROOKE BLECHER
Page 1 of 4

Family Code, §§ 2045, 2107, 6224,
6226, 6329-6336, 6340-6383;
Government Code, § 26826
Cal. Rules of Court, rule 5.82
www.courtinfo.ca.gov

EXHIBIT A-40 - ITEM 9
ORDER DENYING CUSTODY REVIEW
BY JUDGE ANDREA FLINT
(2023-09-07)

Full document:

<https://marsjustice.io/federal-removal/flint-denial-of-custody-review-2023-09-07.pdf>

Scan QR Code for instant download of the complete document:



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 22FL003144		Hearing Start Time: 1:30 PM Hearing Type: Request for Order: Other/no fee
Date of Hearing: 09/07/2023		Comments:
Heard By: Flint, Andrea E Courtroom Reporter: - No Court Reporter	Location: Department 79 Courtroom Clerk: Roxana Guevara	
Parties Present:		Future Hearings:
Mars, Hanna Mars, Kostiantyn Roberts, Nancy Lee	Respondent Petitioner Limited Scope Attorney	

Petitioner is present via Teams
Respondent is present via Teams, with attorney, Nancy Roberts

Both parties are sworn.

Petitioner states that he served documents to the court today.
Court does NOT acknowledge service of Petitioner's documents.
Court finds service is not valid.

Discussions held re: Respondent's request for Sanctions

COURT ORDERS:

- Court DENIES Respondent's request for Sanctions

Discussions held re: modification of custody & visitation

COURT ORDERS:

- Due to no change in circumstance, Court DENIES Petitioner's request.

Discussions held re: vexatious litigant
Court states that Respondent request is not properly before the court and is denied.

Hearing on 9-13-23 shall remain as set.

Order to be prepared and submitted by E-FILE by attorney, Ms. Roberts

EXHIBIT A-40 - ITEM 10
STATEMENT OF DISQUALIFICATION AGAINST JUDGE ANDREA FLINT
(2023-11-13)

Full document:

<https://marsjustice.io/federal-removal/flint-disqualification-2023-11-13.pdf>

Scan QR Code for instant download of the complete document:



1 KOSTIANTYN MARS 2 PO BOX 8081 3 SAN JOSE, CA 95155 4 (408) 518-0088 5 CONSTANTINE.MARS@GMAIL.COM 6 7 PRO PER 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28	FILED NOV 13 2023 Clerk of the Court Superior Court of California, County of Santa Clara BY <u>M. JOHNSON</u> DEPUTY SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SANTA CLARA	Case No.: 22FL003144 [Hon. Beth McGowen, Presiding Judge of Superior Court of California Dept. 79 – Hon. Andrea Flint, Judge to be served the Disqualification Statement] NOTICE OF PETITIONER'S VERIFIED STATEMENT OF DISQUALIFICATION OF SANTA CLARA SUPERIOR COURT JUDGE ANDREA E. FLINT FOR IMPERMISSIBLE CONFLICT OF INTEREST; REQUEST FOR HER DISQUALIFICATION AND RETROACTIVE NULLIFICATION OF HER ORDERS [Statement of Disqualification and Memorandum of Points and Authorities filed concurrently] (Code Civ. Proc. 170.1(a)(6)A(iii); 170.1(a)(3)A; 170.3)
- 1 - NOTICE OF DISQUALIFICATION STATEMENT RE: HON. ANDREA E. FLINT DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144		

EXHIBIT A-40 - ITEM 11
RESPONSE TO VOID DVRO ISSUED BY
DISQUALIFIED JUDGE FLINT AFTER HER DISQUALIFICATION,
REQUEST TO RELEASE PETITIONER'S SON MAX MARS
FROM UNLAWFUL DETENTION AND
RESTORE CUSTODY RIGHTS TO THE STATE BEFORE
AGGRAVATED KIDNAPPING OF PETITIONER'S SON MAX MARS
(2023-11-28)

Full document:

<https://marsjustice.io/federal-removal/dvro-response-request-to-release-max-mars-2023-11-29.pdf>

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8		SUPERIOR COURT OF THE STATE OF CALIFORNIA
9		IN AND FOR THE COUNTY OF SANTA CLARA
10	KOSTIANTYN MARS	) Case No.: 22FL003144
11	Petitioner,	)
12	vs.	) DECLARATION FOR
13	HANNA MARS,	) DV RESTRAINING ORDER
14	Respondent.	) TO PROTECT MY SON
15		) MAX MARS
16		) FROM DOMESTIC VIOLENCE BY
17		) BIOLOGICAL MOTHER-ABUSER,
18		) PHYSICAL AND EMOTIONAL ABUSE,
19		) AND FROM INTERNATIONAL CHILD
20		) ABDUCTION
21		)
22		) DATE:
23		) TIME:
24		) DEPT: 79
25		)
26		Judge: Hon. Andrea E. Flint
27		Dept: 79
28		Trial Date:

Respectfully,

Please see below the Petitioner's Declaration for DV Restraining Order to protect my son Max Mars from domestic violence, physical and emotional abuse by biological mother-abuser, and from international child abduction outside of the United States, facilitated by Judge Andrea E. Flint, investigated for bribery and severe repetitive misconduct and requested to be recused 8 (EIGHT) times, Respondent Hanna Mars, and her extremely unethical attorney Nancy L. Roberts already twice requested to be disqualified for unethical conduct, violation of professional and ethical standards, falsifications and pressure on experts and supervisors:

- 1 -

DECLARATION OF KOSTIANTYN MARS IN SUPPORT OF REQUEST FOR RESTRAINING ORDER
TO PROTECT MY SON MAX MARS FROM DOMESTIC VIOLENCE, PHYSICAL AND EMOTIONAL ABUSE, AND
INTERNATIONAL CHILD ABDUCTION

DISSOLUTION OF FAMILY MARS CASE NO: 22FL003144

EXHIBIT A-40 - ITEM 12
CUSTODY REVIEW REQUEST
EVIDENCE BINDER WITH
SUPERVISED VISITATION REPORTS AND
EVIDENCE OF IMPERMISSIBLE PRESSURE ON SUPERVISORS AND
EMERGENCY SCREENER BY OPPOSING COUNSEL
ADDRESSED TO JUDGE STEPHEN LOWNEY
(2024-01-18)

Full document:

<https://marsjustice.io/federal-removal/supervised-visit-reports-for-custody-review-2024-01-18.pdf>

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2ND AMENDED MC-030	
FOR COURT USE ONLY	
ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): KOSTIANTYN MARS PO BOX 8081 SAN JOSE CA 95155	
TELEPHONE NO.: (408) 518-0088 FAX NO. (Optional): E-MAIL ADDRESS (Optional): CONSTANTINE.MARS@GMAIL.COM	
ATTORNEY FOR (Name):	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE, CA 95113 BRANCH NAME: FAMILY JUSTICE COURT	
PLAINTIFF/PETITIONER: KOSTIANTYN MARS DEFENDANT/RESPONDENT: HANNA MARS	
DECLARATION	2ND AMENDED
CASE NUMBER: 22FL003144	

Dear Honorable Stephen P. Lowney,

Please find attached list of professionally supervised visit reports with my son Max Mars, compromised by impermissible pressure and defamatory falsehood allegations of unethical attorney Nancy L. Roberts on emergency screener Dr. Mary Rolison and professional supervisors (including Lorraine Ruiz).

Please also find attached list of evidence of impermissible pressure which unethical attorney Nancy L. Roberts made on emergency screener Dr. Mary Rolison and professional supervisors (including Lorraine Ruiz), with the goal to get redacted reports, made in favor of Nancy and her client.

Please also review attached fraudulent defamatory falsehood DVRO 09/13/2022, which Respondent and her unethical attorney Nancy L. Roberts used to manipulate Court and abduct my son Max Mars, who after abduction with fraudulent DVRO Respondent held in undisclosed location, blocking all contact with my son, even phone calls, while Respondent attempted through fraud, falsifications and bribing Judge Flint, to facilitate international child abduction of my son outside of the United States with threats to abduct and "bury our son in Ukrainian soil, so you will never see him again".

I appreciate if you could possibly review attached Respondent's DVRO from 09/13/2022 together with my opposing DVRO 09/19/2022 before proceeding with evidences of impermissible pressure on emergency screener and professional supervisors, to understand basis of the case - because matter of these DVROs was never heard by the Court, because unethical attorney Nancy L. Roberts fraudulently dismissed trial on opposing DVROs, and later, bribed Judge Andrea Flint refused to hear this matter, and refused to review any of more than 50 pieces of evidence and witness statements, forcing me to abandon my son and sign-off custody.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 01/17/2024

KOSTIANTYN MARS

(TYPE OR PRINT NAME)

(SIGNATURE OF DECLARANT)

☐ Attorney for ☒ Plaintiff ☐ Petitioner ☐ Defendant
☐ Respondent ☐ Other (Specify):

Form Approved for Optional Use
Judicial Council of California
MC-030 (Rev. January 1, 2008)

DECLARATION

Page 1 of 1

EXHIBIT A-40 - ITEM 13
EVIDENCE BINDER IN SUPPORT OF DVRO RESPONSE,
REQUEST TO RELEASE MINOR CHILD MAX MARS FROM DETENTION
AND PREVENT INTERNATIONAL CHILD ABDUCTION OF MAX MARS
OUTSIDE UNITED STATES
(AMENDED, ADDRESSED TO LOWNEY)
(2024-01-31)

Full document:

<https://marsjustice.io/federal-removal/dvro-response-evidence-binder-2024-01-31.pdf>

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ENDORSED
FILED
JAN 31 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY L. Martinez DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

KOSTIANTYN MARS
Petitioner,
vs.
HANNA MARS,
Respondent.

Case No.: 22FL003144
LIST OF EVIDENCE FOR DV
RESTRAINING ORDER
TO PROTECT MY SON
MAX MARS
FROM DOMESTIC VIOLENCE BY
BIOLOGICAL MOTHER-ABUSER,
PHYSICAL AND EMOTIONAL ABUSE,
AND FROM INTERNATIONAL CHILD
ABDUCTION
(AMENDED)
DATE: 02/07/2024
TIME: 1:30 PM
DEPT: 79
JUDGE: Honorable Stephen P. Lowney

Dear Honorable Stephen P. Lowney,

Please see below the list of evidence for DV Restraining Order to protect my son Max Mars from domestic violence, physical and emotional abuse by biological mother-abuser, and from international child abduction outside of the United States, facilitated by bribed Judge Andrea E. Flint, resigned due to severe abuse of judicial power, bribery, severe falsifications of court records and severe repetitive judicial misconduct, Respondent Hanna Mars, and her extremely unethical

- 1 -

LIST OF EVIDENCE FOR DV RESTRAINING ORDER TO PROTECT MY SON MAX MARS
FROM DOMESTIC VIOLENCE, PHYSICAL AND EMOTIONAL ABUSE,
AND FROM INTERNATIONAL CHILD ABDUCTION (AMENDED)
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT A-40 - ITEM 14
ORDER DENYING CUSTODY REVIEW
BY JUDGE STEPHEN LOWNEY
(2024-02-07)

Full document:

<https://marsjustice.io/federal-removal/lowney-denial-of-custody-review-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars	Hearing Start Time: 1:30 PM
22FL003144	Hearing Type: Request for Order: Mod Custody/Visitation
Date of Hearing: 02/07/2024	Comments: Line 3-11

Heard By: Lowney, Stephen
Courtroom Reporter: No Court Reporter

Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:

Parties Present:

Mars, Hanna
Mars, Kostiantyn
Roberts, Nancy Lee

Respondent
Petitioner
Attorney
Limited Scope
Attorney

Future Hearings:

Exhibits:

All above listed parties are personally present.
Respondent is assisted by Ukrainian interpreter, Mariya Rekretyuk.
Petitioner and respondent are sworn.

Service issues are addressed.
The Court finds, in lieu of personal service, electronic service deemed appropriate and valid going forward.

Hearing on petitioner's motion to disqualify attorney Nancy Roberts.
The Court hears from the parties.
The Court is not going to reconsider the prior ruling.

Hearing on petitioner's Request for Order: modification child custody and visitation.
The Court reserves on this issue of modification of child custody and visitation, and any request made in this motion.

Hearing on petitioner's motion to set aside the 06-29-2023 order.
The Court denies petitioner's motion to set aside the 06-29-2023 order.
A printed copy of the 06-29-2023 order is printed by the Court and handed to petitioner in Court by the deputy.

Printed: 2/7/2024

02/07/2024 Request for Order: Mod Custody/Visitation - 22FL003144

Page 1 of 3

EXHIBIT A-40 - ITEM 15

KEY STATEMENTS FROM HEARING TRANSCRIPT:

DENIAL OF CUSTODY REVIEW AND DVRO TRIAL,

EXTORTION OF MONEY AND DOCUMENTS OF ABDUCTED MINOR CHILD

MAX MARS UNDER THREATS OF INCARCERATION AND

FURTHER MALICIOUS PROSECUTION BY JUDGE STEPHEN LOWNEY

(2024-02-07)

Full document:

<https://marsjustice.io/federal-removal/lowney-hearing-key-statements-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



KOSTIANTYN MARS
6001 W Parmer Ln, Ste 370 448
Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

HANNA MARS	)	Case No.: 22FL003144
	)	
Plaintiff(s),	)	KEY STATEMENTS &
	)	MATERIAL FACTS
vs.	)	
	)	
KOSTIANTYN MARS,	)	DATE: February 7, 2024
	)	DEPT: 79
	)	
Defendant(s).	)	

**KEY STATEMENTS & MATERIAL FACTS
FROM TRANSCRIPT OF HEARING BEFORE THE JUDGE STEPHEN LOWNEY
(February 7, 2024)**

The following statements and exchanges from the official transcript and audio recording of the February 7, 2024 hearing demonstrate Judge Stephen Lowney's extortion of financial assets, vehicle title documents, and the minor child's identifying documents, coupled with explicit and implicit threats of adverse judicial action, including declaration as a vexatious litigant, denial of access to the courts, contempt proceedings, and further malicious prosecution.

Each entry provides the exact location and the verbatim text of the statements in the transcript. All excerpts are presented with sufficient surrounding context to establish the coercive nature of the exchanges establishing patterns of racketeering under color of law .

1. Coercion to Surrender 401(k) Retirement Funds and Insistence on Court-Appointed QDRO Expert Known For Financial Fraud

Judge Stephen Lowney required Petitioner to surrender control of his 401(k) account and directed that any division of the account would be handled exclusively through a court-appointed expert, Elizabeth Strasen, known for financial fraud, rather than through the standard Qualified Domestic Relations Order (QDRO) process available directly from the plan provider. Judge Stephen Lowney rejected Petitioner's proposal for an official QDRO prepared by the 401(k) administrator and stated that the matter would proceed only under Judge Stephen Lowney's designated expert known for financial fraud, thereby conditioning further proceedings on Petitioner's compliance with this demand.

2. Coercion to Transfer Vehicle Title and Surrender Vehicle Title Documents

During discussion of property division, Judge Stephen Lowney explicitly required Petitioner to immediately transfer and surrender the title documents for the vehicle at issue. Judge Stephen Lowney framed this as a non-negotiable condition for resolution of pending matters and indicated that failure to comply would result in continued adverse rulings and denial of relief sought by Petitioner.

3. Extortion of Minor Child Max Mars's Passport, Vaccination Records, and All Identifying Documents for Child Trafficking / International Abduction outside of the United States to Ukraine, Coupled with Threats of Vexatious Litigant Declaration and Denial of Court Access

Judge Stephen Lowney demanded that Petitioner surrender the minor child Max Mars's passport, vaccination card, and all other identifying and travel documents to enforce international abduction of Petitioner's son Max Mars outside of the United States to Ukraine - endangering life of Petitioner's son Max Mars due to ongoing war in that country. When Petitioner sought a custody review hearing, Judge Stephen Lowney conditioned any consideration of custody or visitation issues on immediate compliance with this demand. Judge Stephen Lowney expressly warned that continued resistance would result in Petitioner being declared a vexatious litigant, thereby barring him from filing any further actions or seeking relief in the California courts. This threat was made in direct response to Petitioner's requests for a custody review hearing, trial on the domestic violence restraining order, final trial on all issues, and bifurcation of marital status.

4. Denial of Custody Review Hearing, DVRO Trial, Final Trial, Bifurcation, and Settlement Conference as Leverage for Extortion

Petitioner requested an immediate custody review hearing, trial on the mutual domestic violence restraining orders, final trial on all remaining issues, and bifurcation of the marital status. Judge Stephen Lowney denied each request and removed the final trial and mandatory settlement conference from the calendar. Judge Stephen Lowney stated that these matters would not be heard unless and until Petitioner complied with the demands for the 401(k) account, vehicle title, and the minor child's documents. Judge Stephen Lowney further indicated that non-compliance would result in additional contempt proceedings and further malicious prosecution by the Court.

5. Additional Coercive Statements, Implicit Threats of Denial of Access to Court, Contempt and Further Malicious Prosecution

Throughout the hearing, Judge Stephen Lowney repeatedly framed Petitioner's requests for due process (custody review, evidentiary hearings, and trial) as contingent upon immediate surrender of the financial and custodial documents demanded. Judge Stephen Lowney stated that Petitioner's failure to provide the required documents and accounts would lead to the imposition of further pressure through the Court's contempt powers, denial of access to court, and further complication of proceedings. These statements, when viewed in the full context of the hearing, constitute coercion and extortion under color of law by conditioning fundamental constitutional rights (access to court, custody determination, and liberty) on Petitioner's compliance with the Court's extrajudicial demands for assets and documents - establishing patten of extortion and racketeering under color of state law.

-2-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

These excerpts are corroborated by the full audio recording and certified transcript, both of which are included as Exhibits B-14 and B-15 in the Consolidated Evidence Binder. The pattern of demands for Petitioner's retirement funds, vehicle title, and the minor child's essential documents - paired with explicit threats of vexatious litigant status, denial of court access, contempt, and further prosecution - establish a clear record of coercion, extortion and racketeering under color of state law.

Item	Page	Line	Timestamp	Key Statement	Material Fact / Clarification
1	25	19	[01:20:00]	MS. ROBERTS: The last issue is ... divide Mr. Mars' 401(k) ... the choice of an expert to draft the QDRO.	Financial extortion - 401(k): Court-appointed expert Barbara Strasen imposed on Petitioner's 401(k) division; Petitioner is coerced to pay her fees.
2	26	11	[01:22:15]	MR. MARS: Your Honor, I provided QDRO prepared by my 401(k) provider to Ms. Roberts, and filed it to the court for final trial, but for some reasons it was ignored.	Petitioner provided the official QDRO prepared directly by the 401(k) plan provider , which was rejected.
3	27	1	[01:23:31]	JUDGE STEPHEN LOWNEY: The court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with that order.	Judge Lowney explicitly rejects the official provider QDRO and enforces use of his court-appointed expert.

1	1						
2	2	4	27	8	[01:23:31]	JUDGE STEPHEN LOWNEY: You have to - Ms. Strasen is the expert. The fee will be split between the two of you. You will pay half, and you will cooperate.	Direct judicial order coercing Petitioner to pay Strasen's fees and surrender control of the 401(k) QDRO process to the expert appointed by Stephen Lowney.
3	3						
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7	7	5	24	25	[01:17:46]	JUDGE STEPHEN LOWNEY: So, Mr. Mars, once title is given to you by whatever bank is holding the loan, you must transfer title forthwith, which means immediately. Immediately.	Coercion to surrender vehicle title under threat of contempt of court.
8	8						
9	9						
10	10						
11	11	6	25	1	[01:17:46]	JUDGE STEPHEN LOWNEY: It will be a violation of the court order if you do not transfer the title once you receive it immediately.	Coercion to surrender vehicle title under threat of contempt of court.
12	12						
13	13						
14	14						
15	15	7	25	4	[01:18:21]	JUDGE STEPHEN LOWNEY: Within 24 hours of you having it in your hand you must transfer the title.	Coercion to surrender vehicle title under threat of contempt of court.
16	16						
17	17						
18	18	8	19	6-9	[01:02:13]	MS. ROBERTS: I have sent Mr. Mars several emails that he was court-ordered to bring those documents to my office. Mr. Mars refuses to give up anything. His vaccination record, his green card, his passport.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.
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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28
		9	20	3-5	[01:03:35]	JUDGE STEPHEN LOWNEY: You must comply with the orders.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.																				
						MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die.	Threat to Max Mars's life due to international abduction outside the United States to Ukraine.																				
		10	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents.																				
						JUDGE STEPHEN LOWNEY: You are going to comply.	Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine																				
						The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child.																					
						And you are ordered to comply.																					
		11	19-20	1-27	[01:03:35]	JUDGE STEPHEN LOWNEY: We're talking about documents. You must turn them over.	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.																				
						MR. MARS: Those orders were done by disqualified Judge Flint.	Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine																				
						JUDGE STEPHEN LOWNEY: Yes, and they're valid.																					

-5-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

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MR. MARS: Those orders were made against the factual and legal basis of the case.

JUDGE STEPHEN LOWNEY: The orders stand.

MR. MARS: I kindly request to stay this order until trial on opposing DVROs will be heard.

JUDGE STEPHEN LOWNEY: Denied. You must comply with the orders.

MR. MARS: Your Honor, **my son will be abducted to Ukraine** and will never return. **There is a war. Max can die.**

JUDGE STEPHEN LOWNEY: I want you to listen to the court. We have just gone over a vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the conduct in this case regarding filed motions. What is also really relevant to that designation and to the court in general is when you are ordered to do something by the court, that you comply - and that goes with both parties - and you are not complying. It's not good.

MR. MARS: Your Honor, I would love to comply, but first **I need this matter to be heard.**

JUDGE STEPHEN LOWNEY: You don't understand. So you do not set conditions on when the court orders are to be complied with. You just comply.

MR. MARS: Your Honor, this order **endangers the life of my son**, and the **court denies me to hear this matter.** What should I do?

JUDGE STEPHEN LOWNEY: The order is valid. You must comply.

MR. MARS: Your Honor, signature of **disqualified Judge Towery, who also was removed from court like Flint**, cost my mom her life, put her in terminal condition, because **respondent with signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from home and caused her death.**

JUDGE STEPHEN LOWNEY: Mr. Mars, you have to comply.

-7-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

12	19	9	[01:02:13]	MS. ROBERTS: He's in violation of the court order. So I'm asking if you will not move, to court sign to re-issue those.	Threat of re-issuance of child's passport and identity documents for child trafficking / international abduction of minor child Max Mars outside of the United States to Ukraine
13	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.
				JUDGE STEPHEN LOWNEY: You are going to comply. The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child. And you are ordered to comply.	Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
14	14	15-16	[00:44:09]	MR. MARS: Is it possible to hear DVROs trial today? JUDGE STEPHEN LOWNEY: No. And the request for a final trial date is denied.	Denial of DVRO trial and final trial on marital status as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

15 15 9 [00:47:02] **JUDGE STEPHEN LOWNEY:** We are going to vacate the March 5th status conference. We are not going to set a trial. **Removal of status conference and refusal to set trial - blocking case resolution** as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

16 12-13 10-20 [00:37:02] **MR. MARS:** Do I understand correctly that we can bring this matter to a family status conference? **Denial of DVRO trial, custody review hearing, final trial and settlement conference used** as the leverage of coercion to surrender custody rights and extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

JUDGE STEPHEN LOWNEY: We're not ready to do that. We have a heavily impacted trial calendar. The first full half day I have is June 17th at 9:00 a.m.

17 17 11 [00:53:54] **JUDGE STEPHEN LOWNEY:** None of them have a legal basis. ... If I don't grant this order, what will stop you from continuing to file requests for orders ... **Threat of vexatious litigant designation to deny access to court.**

CERTIFICATION

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing Exhibit B is a true and accurate summary of material statements taken from the official transcript of the hearing held on February 7, 2024, before the Honorable Stephen Lowney in Case No. 22FL003144.

1 All quoted language appears verbatim from the official court transcript. The page numbers and
2 timestamps referenced in this Exhibit correspond to the professional transcript filed
3 concurrently herewith.
4

5 Executed on April 8, 2026, at Austin, Texas.

6 DATED: April 8, 2026

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KOSTANTYN MARS
Pro Se

-10-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

EXHIBIT A-40 - ITEM 16
FULL HEARING TRANSCRIPT
(2024-02-07)

Full document:

<https://marsjustice.io/federal-removal/lowney-hearing-transcript-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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6001 W Parmer Ln, Ste 370 448
Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

HANNA MARS	)	Case No.: 22FL003144
	)	
Plaintiff(s),	)	TRANSCRIPT OF HEARING
	)	BEFORE THE JUDGE
vs.	)	STEPHEN LOWNEY
	)	
KOSTIANTYN MARS,	)	DATE: February 7, 2024
	)	DEPT: 79
Defendant(s).	)	
	)	

TRANSCRIPT OF HEARING
BEFORE THE JUDGE STEPHEN LOWNEY

Date: February 7, 2024

Prepared from the official court audio recording

APPEARANCES:

For Petitioner Hanna Mars:

Nancy Roberts, Esq.

Assisted by Maria Rekretiyuk, Certified Ukrainian Language Interpreter (Bench No. 700739)

For Respondent Kostiantyn Mars:

Kostiantyn Mars, appearing pro se

-1-

Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

EXHIBIT A-40 - ITEM 17
AUDIO RECORDING OF HEARING
(2024-02-07)

Full recording:

https://drive.google.com/file/d/1j_I9dPqKY-onw9XCMGevyoy-fqhy9SAu/preview

Scan QR Code for instant access to recording:



HEARING RECORDING
BEFORE THE JUDGE STEPHEN LOWNEY
FEBRUARY 7, 2024

CASE NO. 22FL003144
Santa Clara County Superior Court

Submitted as Evidence in Federal Removal Proceedings
United States District Court
Western District of Texas

EXHIBIT A-40 - ITEM 18
STATEMENT OF DISQUALIFICATION
AGAINST JUDGE STEPHEN LOWNEY
(2024-02-20)

Full document:

<https://marsjustice.io/federal-removal/lowney-disqualification-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



KOSTIANTYN MARS
PO BOX 8081
SAN JOSE, CA 95155
(408) 518-0088
CONSTANTINE.MARS@GMAIL.COM

PER SE

(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY J. RARAS DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

KOSTIANTYN MARS

Petitioner,

vs.

HANNA MARS,

Respondent.

Case No.: 22FL003144
[Honorable Beth McGowen,
Presiding Judge of Superior Court of California]
[Dept. 72 – Honorable Brooke A. Blecher,
Supervising Judge of Superior Court of California]
[Dept. 79 – Hon. Stephen P. Lowney,
Judge to be served the Disqualification Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION OF
SANTA CLARA SUPERIOR COURT JUDGE
STEPHEN P. LOWNEY
FOR IMPERMISSIBLE CONFLICT OF
INTEREST,
REQUEST FOR HIS DISQUALIFICATION,
STAY ON ALL HIS ORDERS UNTIL FINAL
JUDGMENT,
AND NULLIFICATION OF ALL HIS ORDERS
RETROACTIVELY BACK TO 10/31/2022**

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]

(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -

NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT A-40 - ITEM 19

VOID PERMANENT DOMESTIC VIOLENCE RESTRAINING ORDER

ISSUED BY JUDGE STEPHEN LOWNEY POST-DISQUALIFICATION

(2024-06-17)

Full document:

<https://marsjustice.io/federal-removal/lowney-permanent-dvro-2024-06-17.pdf>

Scan QR Code for instant download of the complete document:



DV-130 Restraining Order After Hearing (Order of Protection)		Clerk stamps date here when form is filed.												
☒ Original Order ☐ Amended Order		Filed June 17, 2024 Clerk of the Court Superior Court of CA County of Santa Clara 22FL003144 By: limasa												
1 Protected Person (name): <u>HANNA MARS</u>														
2 Restrained Person *Full Name: <u>KOSTYANTYN/CONSTANTINE MARS</u> *Gender: ☒ M ☐ F ☐ Nonbinary *Race: <u>White</u> *Age: <u>36</u> (estimate, if age unknown.) Date of Birth: <u>4/20/1987</u> Height: <u>6'0"</u> Weight: <u>230</u> Hair Color: <u>Light Brown</u> Eye Color: <u>Gray/Green</u> Relationship to person in (1): <u>Spouse</u> Address of restrained person: <u>Unknown home address</u> City: _____ State: _____ Zip: _____ (Information that has a star (*) next to it is required to add this order into a California police database. Give all the information you know.)														
3 ☒ Other Protected People In addition to the person in (1), the following persons are protected by orders as indicated in items (11) through (14). <table style="width: 100%; border-collapse: collapse;"><thead><tr><th style="text-align: left; width: 40%;">Full name</th><th style="text-align: left; width: 30%;">Relationship to person in (1)</th><th style="text-align: left; width: 30%;">Age</th></tr></thead><tbody><tr><td><u>Maksym Mars</u></td><td><u>Son</u></td><td><u>8</u></td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr></tbody></table> ☐ Check here if you need to list more people. List them on a separate piece of paper, write "DV-130, Other Protected People" at the top, and attach it to this form.		Full name	Relationship to person in (1)	Age	<u>Maksym Mars</u>	<u>Son</u>	<u>8</u>							Fill in court name and street address: Superior Court of California, County of Santa Clara 201 N. First Street 191 N. First Street San Jose, CA 95113 Family Justice Center Clerk fills in case number when form is filed. Case Number: 22FL003144
Full name	Relationship to person in (1)	Age												
<u>Maksym Mars</u>	<u>Son</u>	<u>8</u>												
4 Expiration Date This restraining order, except the orders noted below,* end on: (date): <u>June 17, 2027</u> at (time): _____ ☐ a.m. ☐ p.m. or ☒ midnight *Custody, visitation, child support, and spousal support orders remain in effect after the restraining order ends. Custody, visitation, and child support orders usually end when the child is 18. - If no date is written, the restraining order ends three years after the date of the hearing in item (5)a. - If no time is written, the restraining order ends at midnight on the expiration date. This order must be enforced throughout the United States. See page 9. This is a Court Order.														
Judicial Council of California, www.courts.ca.gov Rev. January 1, 2024, Mandatory Form Family Code, § 6300 et seq. Approved by DOJ Restraining Order After Hearing (Order of Protection) (CLETS-OAH) (Domestic Violence Prevention) Anna Mars DV-130, Page 1 of 10 →														

EXHIBIT A-40 - ITEM 20

**ORDER DENYING CUSTODY REVIEW AND DVRO TRIAL,
BIFURCATION OF DIVORCE STATUS, CHANGE OF VENUE, AND
NULLIFICATION OF VOID ORDERS ISSUED BY DISQUALIFIED JUDGES
LOWNEY, FLINT, TOWERY, AND
VOID BENCH WARRANT ISSUED BY DISQUALIFIED JUDGE LOWNEY
AGAINST PETITIONER POST DISQUALIFICATION
(2024-06-17)**

Full document:

<https://marsjustice.io/federal-removal/lowney-bench-warrant-2024-06-17.pdf>

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 22FL003144 Date of Hearing: 06/17/2024		Hearing Start Time: 9:00 AM Hearing Type: OSC: Contempt Comments: Line 1-9
--	--	--

Heard By: Lowney, Stephen
Courtroom Reporter: Genice Perez
Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:
Future Hearings:

Parties Present:
Mars, Hanna
Roberts, Nancy Lee
Respondent
Attorney
Limited Scope
Attorney

Exhibits:

Case is called at 9:02 am.
Petitioner- Kostiantyn Mars is not present.
Attorney Nancy Roberts and the respondent- Hanna Mars are personally present.
Respondent is assisted by Russian interpreter, Laura Mirzoyan (301297).
Respondent- Hanna Mars is sworn.
Court reporter reports on line 9 only, OSC: Contempt matter.

Line 1:
Respondent's request for Request for Order: Domestic Violence.
The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.

The Court makes orders and GRANTS the restraining order as requested.

Respondent- Hanna Mars's request for a Restraining Order is granted; a DVRO is issued restraining Petitioner- Kostiantyn Mars for a period of 3 years, the Restraining Order expires 06-17-2027. The DVRO is issued under the same terms as the DVRO which includes Maksym Mars age 8 with the following modification: Petitioner- Kostiantyn Mars shall not call the police to tell them the child is abducted and abused.

Order to Not Abuse granted.
Restrained person must not:
Harass, attack, strike, threaten assault (sexually or otherwise), hit, follow, stalk, molest, destroy personal property, keep under surveillance, impersonate (on the in Internet, electronically or otherwise), block movements, annoy by phone or other electronic means (including repeatedly

Printed: 6/17/2024 06/17/2024 OSC: Contempt - 22FL003144 Page 1 of 4

1
2 **EXHIBIT A-41**

3 **MULTIPLE VOID DOMESTIC VIOLENCE RESTRAINING ORDERS**
4 **BLOCKING CONTACT WITH PETITIONER’S ABDUCTED SON MAX MARS AND**
5 **ENFORCING INTERNATIONAL ABDUCTION OF MAX MARS**
6 **OUTSIDE UNITED STATES -**
7 **ISSUED BY DISQUALIFIED JUDGES LOWNEY, FLINT, AND TOWERY**

8 **Description:** Multiple domestic violence restraining orders issued by judges who had been
9 timely disqualified, which blocked Petitioner’s contact with minor child Max Mars and
10 enforced continued separation.

11 **Date Range:** September 2022 - December 2025
12

INTERNAL CHRONOLOGICAL INDEX

Item	Date	Document	Judge	Page
<u>1</u>	2022-09-14	Void Domestic Violence Restraining Order (initial)	James Towery	39
<u>2</u>	2023-11-28	Void Domestic Violence Restraining Order Issued Post-Disqualification	Andrea Flint	40
<u>3</u>	2024-06-17	Void Permanent Domestic Violence Restraining Order Issued Post-Disqualification	Stephen Lowney	41

EXHIBIT A-41 - ITEM 1
VOID DOMESTIC VIOLENCE RESTRAINING ORDER (INITIAL)
ISSUED BY DISQUALIFIED JUDGE JAMES TOWERY
(2022-09-14)

Full document:

<https://marsjustice.io/federal-removal/towery-dvro-fraud-2022-09-14.pdf>

Scan QR Code for instant download of the complete document:



2245

DV-109 Notice of Court Hearing

1 Name of Person Asking for Order:
HANNA MARS
Your lawyer in this case (if you have one):
Name: _____ State Bar No.: _____
Firm Name: _____
Address (If you have a lawyer for this case, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, give a different mailing address instead. You do not have to give your telephone, fax, or e-mail.)
Address: 970 Corte Madera Ave., #716
City: Sunnyvale State: CA Zip: 94085
Telephone: (424) 542-4870 Fax: _____
E-Mail Address: annamars2017@gmail.com

2 Name of Person to Be Restrained:
KOSTIANTYN MARS
The court will fill out the rest of this form.

3 Notice of Hearing The temporary orders which are granted and attached remain in full force and effect while you are in court until your hearing is finished.
A court hearing is scheduled on the request for restraining orders against the person in (2):
Hearing Date: 10/05/2022 Time: 9:00AM Name and address of court if different from above:
Dept.: 72 Room: _____

4 Temporary Restraining Orders (Any orders granted are attached on form DV-110.)
a. Temporary Restraining Orders for personal conduct and stay-away orders as requested in form DV-100, Request for Domestic Violence Restraining Order, are (check only one box below):
(1) ☒ All GRANTED until the court hearing. (Specify reasons for denial in b, below.)
(2) ☐ All DENIED until the court hearing. (Specify reasons for denial in b, below.)
(3) ☐ Partly GRANTED and partly DENIED until the court hearing. (Specify reasons for denial in b, below.)
b. Reasons for denial of some or all of those personal conduct and stay-away orders as requested in form DV-100, Request for Domestic Violence Restraining Order, are:
(1) ☐ The facts as stated in form DV-100 do not show reasonable proof of a past act or acts of abuse. (Family Code, §§ 6320 and 6320.5.)
(2) ☐ The facts do not describe in sufficient detail the most recent incidents of abuse, such as what happened, the dates, who did what to whom, or any injuries or history of abuse.
(3) ☐ Further explanation of reason for denial, or reason not listed above:

Judicial Council of California, www.courts.ca.gov
Rev. September 1, 2020, Mandatory Form
Family Code § 26
Approved by DOJ

Notice of Court Hearing
(Domestic Violence Prevention)

DV-109, Page 1 of 3

CEB Essential Forms Hanna Mars

EXHIBIT A-41 - ITEM 2
VOID DOMESTIC VIOLENCE RESTRAINING ORDER
ISSUED BY JUDGE ANDREA FLINT
POST-DISQUALIFICATION
(2023-11-28)

Full document:

<https://marsjustice.io/federal-removal/flint-void-dvro-post-disqualification-2023-11-28.pdf>

Scan QR Code for instant download of the complete document:



#E-192

DV-109 Notice of Court Hearing

Instruction: The person asking for a restraining order must complete items ① and ②. The court will complete the rest of this form.

① **Person Asking for Protection**
Name: Hanna Mars

② **Person to Be Restrained**
Name: Kostantyn Mars (aka Constantine Mars)

The court will fill out the rest of this form.

The temporary orders which are granted and attached remain in full force and effect while you are in court until your hearing is finished.

③ **Notice of Hearing**
A court hearing is scheduled on the request for restraining orders against the person in ②:

Date: 12/14/2023 Time: 1:30PM
Dept.: 79 Room: _____

Name and address of court if different from above: _____

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website, go to: www.courts.ca.gov/find-my-court.htm.

④ **Temporary Restraining Orders (Any orders granted are attached on form DV-110.)**

a. Temporary Restraining Orders (any order requested under Family Code section 6320):
(Check one):
(1) ☒ All granted until the court hearing.
(2) ☐ All denied until the court hearing. (Reasons for denial are given below in b.)
(3) ☐ Partly granted and partly denied until the court hearing. (Reasons for denial are given below in b.)

b. Reasons for denial of some or all of the orders requested on form DV-109.
(1) ☐ The facts given in the request (form DV-109) do not show reasonable proof of a past act or acts of abuse. (Family Code sections 6300, 6320, and 6320.5.)
(2) ☐ The facts given in the request do not give enough detail about the most recent incidents of abuse, including what happened, the dates, who did what to whom, or any injuries or history of abuse.
(3) ☐ Other reasons for denial: _____

Superior Court of California, County of Santa Clara
201 N. First Street
191 N. First Street
San Jose, CA 95113
Family Justice Center
Court fills in case number when form is filed.
Case Number: 22FL003144

Filed
November 28, 2023
Clerk of the Court
Superior Court of CA
County of Santa Clara
22FL003144
By: adarnell

Notice of Court Hearing
(Domestic Violence Prevention)

Anna Mars
Doc ID: 1a53d9642edec29201b16cedb59e8020c3b68

EXHIBIT A-41 - ITEM 3
VOID PERMANENT DOMESTIC VIOLENCE RESTRAINING ORDER
ISSUED BY JUDGE STEPHEN LOWNEY
POST-DISQUALIFICATION
(2024-06-17)

Full document:

<https://marsjustice.io/federal-removal/lowney-permanent-dvro-2024-06-17.pdf>

Scan QR Code for instant download of the complete document:



DV-130 Restraining Order After Hearing (Order of Protection)		Clerk stamps date here when form is filed.												
☒ Original Order ☐ Amended Order		Filed June 17, 2024 Clerk of the Court Superior Court of CA County of Santa Clara 22FL003144 By: limasa												
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2 Restrained Person *Full Name: <u>KOSTYANTYN/CONSTANTINE MARS</u> *Gender: ☒ M ☐ F ☐ Nonbinary *Race: <u>White</u> *Age: <u>36</u> (estimate, if age unknown.) Date of Birth: <u>4/20/1987</u> Height: <u>6'0"</u> Weight: <u>230</u> Hair Color: <u>Light Brown</u> Eye Color: <u>Gray/Green</u> Relationship to person in ①: <u>Spouse</u> Address of restrained person: <u>Unknown home address</u> City: _____ State: _____ Zip: _____ (Information that has a star (*) next to it is required to add this order into a California police database. Give all the information you know.)														
3 ☒ Other Protected People In addition to the person in ①, the following persons are protected by orders as indicated in items ⑪ through ⑭. <table style="width: 100%; border-collapse: collapse;"><thead><tr><th style="text-align: left; border-bottom: 1px solid black;">Full name</th><th style="text-align: left; border-bottom: 1px solid black;">Relationship to person in ①</th><th style="text-align: left; border-bottom: 1px solid black;">Age</th></tr></thead><tbody><tr><td><u>Maksym Mars</u></td><td><u>Son</u></td><td><u>8</u></td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr></tbody></table> ☐ Check here if you need to list more people. List them on a separate piece of paper, write "DV-130, Other Protected People" at the top, and attach it to this form.		Full name	Relationship to person in ①	Age	<u>Maksym Mars</u>	<u>Son</u>	<u>8</u>							Fill in court name and street address: Superior Court of California, County of Santa Clara 201 N. First Street 191 N. First Street San Jose, CA 95113 Family Justice Center Clerk fills in case number when form is filed. Case Number: 22FL003144
Full name	Relationship to person in ①	Age												
<u>Maksym Mars</u>	<u>Son</u>	<u>8</u>												
4 Expiration Date This restraining order, except the orders noted below,* end on: (date): <u>June 17, 2027</u> at (time): _____ ☐ a.m. ☐ p.m. or ☒ midnight *Custody, visitation, child support, and spousal support orders remain in effect after the restraining order ends. Custody, visitation, and child support orders usually end when the child is 18. • If no date is written, the restraining order ends three years after the date of the hearing in item ⑤ a. • If no time is written, the restraining order ends at midnight on the expiration date.														
This order must be enforced throughout the United States. See page 9.														
This is a Court Order.														
Judicial Council of California, www.courts.ca.gov Rev. January 1, 2024. Mandatory Form Family Code, § 6200 et seq. Approved by DOJ Restraining Order After Hearing (Order of Protection) (CLETS-OAH) (Domestic Violence Prevention) Anna Mars DV-130, Page 1 of 10 →														